

		Inc. (Respondent). As more fully set forth below, the Petition is GRANTED. This case arises from a contract between Petitioner and Respondent whereby Respondent agreed to pay Petitioner a percentage of an Employee Retention Tax Credit (ERC) received by Respondent. On July 15, 2025, Judge Kirk Nakamura (Ret.), issued a Final Award of \$92,486.97 plus costs in the amount of \$15,876.40 in favor of Petitioner and against Respondent. Code of Civil Procedure §1290.2 provides as follows: "A petition under this title shall be heard in a summary way in the manner and upon the notice provided by law for the making and hearing of motions, except that not less than 10 days' notice of the date set for the hearing on the petition shall be given." Once a party to an arbitration files a petition to confirm, correct, or vacate an award, a response must be filed and served within 10 days after service of the petition, unless a judge extends, or both parties agree to extend, this deadline. (Code Civ. Proc., § 1290.6). If a response is not filed by the deadline, the allegations of the petition are deemed admitted by the respondent. (Code Civ. Proc., § 1290.) Here, there has been no response to the petition by Respondent. Further, the court finds that the Petition complies with the requirements of Code of Civil Procedure section 1285.4. A copy of the Engagement Letter is attached as Attachment 4(b) to the petition. The penultimate paragraph of the Engagement Letter includes the arbitration provision. The Petition sets forth the name of the arbitrator, Judge Kirk Nakamura (Ret.). Finally, a copy of the JAMS Arbitration Final Award, dated July 15, 2025, is attached as Attachment 8(c). As the Petition complies with CCP §1285.4, and there has been no response to the Petition, the Petition is GRANTED and the arbitrator's Final Award is CONFIRMED. Petitioner's counsel is ordered to submit a proposed judgment and to give notice of this ruling.
7	<i>Forward Financing LLC vs. Aladdin VIP Transportation Inc.</i> <i>2025-01532815</i>	Before the court is the continued hear on the petition of petitioner Forward Financing, LLC (Petitioner) seeking to confirm a final arbitration award, dated December 1, 2025, by arbitrator Christina Magee, Esq., at Resolute Systems, LLC, in which Petitioner was awarded \$64,425.66 against respondents Aladdin VIP Transportation Inc. and Alaaeddin Atik (collectively, Respondents). As more fully set forth below, the petition is DENIED WITHOUT PREJUDICE.

	The court first heard this petition on March 26, 2026. At that time the court continued the hearing to today's date because Petitioner failed to file a proof of service showing Respondents and been properly served with the petition and notice of the hearing. Specifically, the court ruled as follows: "Before the Court is the petition by petitioner Forward Financing, LLC (Petitioner) seeking to confirm a final arbitration award, dated December 1, 2025, by arbitrator Christina Magee, Esq., at Resolute Systems, LLC, in which Petitioner was awarded \$64,425.66 against respondents Aladdin VIP Transportation Inc. and Alaaeddin Atik (collectively, Respondents). As more fully set forth below, the hearing is CONTINUED TO THURSDAY, MAY 28, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for proper service and notice. "Petitioner is required to serve the petition and notice of hearing at least 10 days prior to the hearing. (Code Civ. Proc., § 1290.2.) The manner in which service is to be made is governed by Code of Civil Procedure section 1290.4, which provides as follows: “(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice. “(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: “(1) Service within this State shall be made in the manner provided by law for the service of summons in an action. “(2) Service outside this State shall be made by mailing the copy of the petition and notice and other papers by registered or certified mail. Personal service is the equivalent of such service by mail. Proof of service by mail shall be made by affidavit showing such mailing together with the return receipt of the United States Post Office bearing the signature of the person on whom service was made. Notwithstanding any other provision of this title, if service is made in the manner provided in this paragraph,
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		the petition may not be heard until at least 30 days after the date of such service. “(c) If the arbitration agreement does not provide the manner in which such service shall be made and the person on whom service is to be made has previously appeared in the proceeding or has previously been served in accordance with subdivision (b) of this section, service shall be made in the manner provided in Chapter 5 (commencing with Section 1010) of Title 14 of Part 2 of this code.’ “California Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days prior to the hearing. “Here, no proof of service has been filed showing the petition and notice of hearing have been served on Respondents. Accordingly, the hearing is CONTINUED as set forth above for Petitioner to properly and timely serve the petition, notice of hearing, and any other necessary documents.” Since the March 26, 2026 hearing, Petitioner has not filed any notice of ruling, notice of hearing, or proof of service showing Respondent has received any documents filed in this case or received any notice of this hearing. Petitioner also has not filed anything demonstrating any efforts have been made to located and serve Respondents. Based on the failure to properly serve Respondents and provide notice of this hearing despite being given the opportunity to do so, the petition is DENIED WITHOUT PREJUDICE. Petitioner’s counsel is ordered to give notice of this ruling.
8.	<i>Azizi vs. Mobilitas Insurance Company</i> <i>2026-01556670</i>	Before the court is the motion of respondent Mobilitas Insurance Company (Mobilitas) to stay arbitration. As more fully set forth below, the motion is DENIED WITHOUT PREJUDICE. Initially, the court notes Mobilitas identifies itself as the respondent in this case even though it is the party who initiated these proceedings. As the party who filed the petition to open this case, Mobilitas should be identified as the petitioner in these proceedings, even though it is the one against whom relief may ultimately be sought in any arbitration. By this motion, Mobilitas seeks an order to stay arbitration proceedings pending resolution of occupational accident